# 18 Intellectual Property Rights in the Fashion Industry, from International to Post-Colonial Contexts

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## Introduction

This chapter examines the relations between the fashion industry, innovation, and intellectual property from the nineteenth century until today. Fashion is an industry straddling the boundary between art and commerce.[1] Its products feature a more or less important design component. During the nineteenth century and well into the twentieth, higher-end fashion products were considered to have a stronger design component than mass-market or basic fashions, but this changed gradually, especially after World War II, when designs emerged from more diverse sources, such as from the street and countercultures. The massification of the manufacturing and consumption of fashion products has had a profound influence on the industry, which changed at a rapid pace.

Early on, sociologists observed that a characteristic of the fashion industry was emulation and imitation, as explained by Gabriel Tarde in *Les lois de l'imitation*, published in 1890. Four decades later, Edward Bernays, a specialist in communication who was also considered a pioneer in the discipline of public relations, wrote of his interest in the sociological phenomenon of fashion as the best way to direct public opinion in democratic regimes. Fashion, for these two theoreticians, exercised a powerful force that drove the members of a human society in the same direction. This force was not necessarily rational. Rather, it was impossible to exactly pinpoint why some fashions were successful and others were not. Fashion is also imitation, and those two words, as defined by both theorists, were nearly synonymous. The fashion industry can therefore be defined as derivative. It aims to reproduce the more sought-after clothes and accessories for a number of consumers that kept increasing over the course of the last two centuries.[2]

Despite the definition of fashion as a derivative industry, numerous fashion producers—designers, manufacturers, retailers, and consultants—have developed a keen interest in intellectual property rights. Such rights include trademark, patent, copyright, protection of design, trade secrets, and fair competition.

In this context, the role of intellectual property in the fashion industry appears to be limited, but enduring, and shifted along with new societal demands. For example, the need for better traceability of the production of garments and accessories has resulted over recent decades in increased regulation of labeling and trademarking of products. Green trademarks are thus becoming a subfield of trademarking. In the context of increased scrutiny of the ecological imprint of fashion production, the emergence and development of greener labels is therefore quickly becoming an expanding field of scholarly inquiry.[3]

The time span of this chapter is characterized by periods of internationalization, until World War I, and of globalization, especially from the 1970s. Fashion economies have

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always been international and, most recently, questions on decoloniality have assumed a growing importance in the industry. First, this chapter examines the relation between innovation and intellectual property in the fashion industry. Second, it moves on to the issue of intellectual property in design, with a focus on the development of high authorship in France from the late nineteenth century. Third, the chapter examines the ways in which a Eurocentric system that posited high authorship in the fashion industry was exported around the world, with a focus on cases from Francophone colonies. Fourth, the chapter examines contestations of and limits to intellectual property. I use historical research methods, with a focus on the culture of law and business, and argue that the historical method and diachronic approach are particularly relevant in order to examine the relations between the law, practices, and norms. The first section especially aims to present the state of the art in the field. The second section builds on the historiography and previous research on the topic, and the third section is based on new research in unpublished archives and printed sources. The last parts of the chapter are based on further archives, more recent printed sources, and a historiography review.

## Innovation, Patenting, and Trademarking

Garment and accessory firms innovated in numerous ways during the nineteenth century. Innovators took patents in domains that they considered to be relevant for the progress of the industry, and that they wanted to protect. The most famous of these was a group of patents for nine innovations that together made the invention of the sewing machine possible. The history of the sewing machine and the spread of this innovation around the world are studied by Andrew Godley in Chapter 1 of this volume. From the point of view of patenting itself, the case of the sewing machine was creative, considering that the disputes between several innovators who claimed to have invented the sewing machine evolved in what is considered to be the first patent pool in history. In 1856, Elias Howe, Orlando B. Potter, Allen B. Wilson, Nathaniel Wheeler, and Isaac Singer contracted a patent pool for the sewing machine for a limited duration, until 1877.[4] The case of the sewing machine has interested economists, who have aimed to understand the effects of patenting on the dynamics of innovation and, furthermore, the effects of patent pooling. Economists Ryan Lampe and Petra Moser have measured the number of patents taken by other industrialists before, during, and after the patent pool was in force and evaluated the number of stitches per minute—a measure of the economic efficiency of the new machines—during these various phases. Their calculations show that, while the patent pool was in force, the number of stitches per minute stagnated; therefore, they argued, the patent pool had the effect of slowing innovation in the design of sewing machines.[5]

Domains of activity such as corsetry, sports clothes, and performance clothes remain attractive areas for the registering of patents. In her extensive research on the history of patents, Bibi Zorina Khan has shown that, although women were underrepresented among innovators taking out patents, women were more represented in the areas of domestic-related and garment-related works.[6] Furthermore, Kat Jungnickel demonstrated that, for women in the Victorian era, taking out patents could be considered an act of affirmation of their citizenship in the era of the conquest of the suffrage. Today, the increasing interest in performance textiles and so-called intelligent textiles creates newer opportunities for firms to innovate and take out patents.[7]

Most fashion production today remains dependent on the human hand: To feed the textile into the sewing machines, operate them, and perform many finishing tasks. Most

of the machines used in the fashion industry remain quite similar to those described in the first patent pool, and such machines, provided they remain in good condition, can be used today to make fashionable garments. The fashionability of the garment, therefore, is not necessarily dependent on the performance of the machine.[8] Yet, notable improvements have taken place since the nineteenth century—most notably, the electrification of the machines, which increased the speed of production. Other innovations have developed in terms of clothes fastenings, such as the design of the zipper, developed in New Jersey by Gideon Sundback in 1913.[9] Over the next decades, when they replicated French designs for the U.S. markets, American garment producers tended to replace fastenings such as hooks and eyes or buttons with zippers.[10] Another important invention was Lycra, developed by Delaware-based firm Dupont de Nemours in 1959. The elasticated quality of Lycra has, as shown by historian Kaori O'Connor, changed the way numerous garments are worn, including jeans, by changing the quality of the fabric from stiff to flexible.[11] Newer developments in the use of Lycra have resulted in a long lifetime of patents for that innovation, whose success is enduring. For example, in recent years, the Lycra Company sued four companies based in China on the grounds of a lack of respect for the dual core patent for denim. In 2021, the lawsuit ended with a financial settlement in which the four defendants acknowledged the Lycra Company's rights.[12]

Innovation in the fashion industry is complex, as it combines technological innovation with design novelty. Indeed, technology can have an important effect on design. For example, the wearing of jeans containing Lycra fibers and the discovery of new colors from synthetic dyes, as discussed by Regina Lee Blaszczyk in her chapter in this volume, are innovative on both the technological and the aesthetic fronts. Yet the frequency of change in the fashion industry results primarily from design novelty, with the presentation of new designs each season making older designs obsolete. During the 1950s, for example, this obsolescence was of six or seven years, with Paris couturiers such as Dior and Balenciaga creating a silhouette made to last for such an amount of time, and since then designs have changed with increasing rapidity, creating faster obsolescence of fashion, that is now the topic of critiques from consumers but also from a part of the industry, as well.[13] The programming of fashion calendars is an important activity in the industry[14] and, especially from the postwar era, experts such as semiologist Roland Barthes have discussed the acceleration of the fashion seasons, some brands presenting several dozen micro-seasons per year.[15] While this acceleration was seen positively during the economic boom of the postwar years, it is no longer sustainable. Some producers remain attached to fast-paced seasons, but other firms propose a return to a more stable offer that may include, for example, the conduction of similar designs from one collection to another.[16]

The needs of innovative entrepreneurs to authenticate their production, certify its quality, and protect their designs has a history that is as ancient as international trade.[17] The garment industry evolved from the practice of bringing cloth to a tailor or a seamstress, and *haute couture* houses started to provide both the fabric and the design of the garment, creating new needs for demonstrating authenticity during the nineteenth century. Couturiers inserted their brands in the waist of the garments (with a *cordon de taille*). Firms included their name and often their address as a signature for the garment. The participation of industrialists in the World Fairs and international exhibitions, starting in the mid-nineteenth century, reinforced a commercial culture in which it was important to advertise one's product to domestic and foreign markets and to protect innovations.[18]

Against this backdrop, the figure of the couturier emerged as a genius designer. Scholarly works have examined the status of the couturier and couturiere, usually self-defining as artisans and entertaining proximity to the so-called higher arts.[19] For example, Gabrielle Chanel was a philanthropist to choreographers, illustrators, and musicians. Jacques Doucet was an important collector of paintings and rare books. Lucien Lelong was a patron of the arts and trained himself in sculpting. The list goes on, demonstrating the symbiotic relationship that linked *haute couture* to other arts and crafts.[20]

**Copyrighting Fashion: High Authorship and Collective Lawsuits**

Fostering greater intellectual property rights for arts and crafts raised difficult issues around the relations between aesthetics, elitism, and the production of beautiful objects for the masses. In her groundbreaking book *Couture Culture*, Nancy Troy showed that the world of *haute couture* in turn-of-the-century Paris acted to protect its intellectual property while new art forms emerged that subverted the notion of the aura of the work as described by Walter Benjamin.[21] Emerging artists such as the Cubists, and then Marcel Duchamp, who practiced the ready-made, challenged the boundaries between high- and low-brow art productions. This, in turn, contributed to legitimize *haute couture*.[22]

A major challenge was to foster profits from the dissemination of haute couture into foreign markets. This topic has been well studied for other cultural productions and, notably, for literary and dramaturgic productions, where this challenge arose especially from translations.[23] In the case of fashion, translation was not involved as such, but rather unwanted reproductions, often serialized, in overseas markets. Several types of intellectual property could be used in the case of fashion products: The protection of the trademark or brand; the protection of fashion drawings and fashion plates against counterfeits; and the protection of garment designs.[24]

During the interwar period, high-profile cases of fashion entrepreneurs suing copyists of their designs and counterfeiters of their brands appeared in French courts. Following in the footsteps of entrepreneurs of the Belle Epoque such as Paul Poiret and the Callot sisters, designers of the new generation sought to protect their work from imitations. Among them, Madeleine Vionnet distinguished herself as an outstanding designer and a protective businesswoman.[25] She worked in close connection with managing directors and lawyers who represented her interests in professional associations and in the courts. Lawsuits resulted in an increase in intellectual property case law and a legitimization of the brand value of *haute couture*. In the cases that Vionnet won during the 1920s, the counterfeiters had to pay not only damages but also for half a dozen or a dozen insertions in the newspapers giving publicity to the case they lost. Such publications contributed to the criminalization of counterfeiting fashions in the public sphere.[26] However, it remained challenging for the Paris couturiers to assert their authority in foreign markets, especially in the United States, where the law was much less protective of fashion designs than was the case in France.[27]

Cases won by the Paris couturiers against copyists in the courts reinforced the authenticity of their brands, themselves based on the aura of the individual names of the designers.[28] Yet the collective action of the couturiers was essential in achieving greater brand value. Unlike in other professions such as literature or music, the couturiers did not enjoy the support of authors' rights societies. Instead, the Chambre Syndicale de la Couture Parisienne played that role for them. The Chambre hired the services of lawyers during the interwar period and represented the couturiers as a private plaintiff in their

lawsuits against copyists. In turn, damages that the couturiers obtained when they won lawsuits against fashion pirates were pooled by the Chambre, which used those funds for charities supporting couture workers.[29]

## Intellectual Property Cases in Colonial Contexts

The Paris and the Berne Conventions, which protected industrial rights and copyright were the result of nineteenth-century internationalism. From early on, the Western powers included their colonial empires in the reach of those treaties, which were seen by many in the West as promoters of peace and science.[30] The treaties also imposed Western definitions of law on colonized countries. Successive revisions of Conventions have sought to adapt the frameworks of intellectual property to the needs of developing countries, but historians such as Eva Hemmungs Wirtén have shown that such adaptations were insufficient to cater to the specificities and demands of countries that had suffered numerous consequences of colonization and decolonization.[31]

Examinations of court and trade association archives show that couturiers frequently banded together against copyists. Court proceedings show that groups of entrepreneurs or networks of intermediaries often operated in the grey zones of the trade. During the postwar era, couturiers extended the geographical reach of their legal actions to other countries. The system of intellectual property rights and case law that protected the *haute couture* firms extended its international influence. In the United States, where fashion designs were not included in the scope of copyright law or industrial design registration, judges nonetheless convicted copyists and counterfeiters who engaged in unfair competition, another aspect of intellectual property. The prominent Paris *haute couture* firm Christian Dior, in this way, managed to have their complaints of unfair competition against New York-based copyist firm Milton acknowledged by judges in the United States.[32]

The house of Dior, one of the most active couture firms in organizing the dissemination of couture abroad, set up contracts for the authorized reproduction of its designs with buyers abroad and in the French provinces. The buyers from the French colonies were listed among the provincial buyers. In 1949 two buyers were registered in the departments of of Algeria—Prome, 4 rue d'Alsace-Lorraine, in Oran, and Choucroune, 5 Place Foch, also in Oran—and three in the French protectorate of Morocco, all of them in Casablanca—Boyrie, 57 boulevard Guynemer, Marie Claire (Mlle Marie Claire Merreaux), 67, boulevard de la Gare, and Mathilde Goirand, 248 boulevard de la Gare.[33] These were the only buyers present in French colonies, but the list of foreign buyers at Dior included businesses situated in, among other places, South Africa.

The global reach of such contracts for the authorized reproduction of *haute couture* designs went hand in hand with the repression of counterfeits on the same markets. The archives of the Chambre Syndicale de la Couture Parisienne show that the anti-piracy activities of the trade association reached outside Northern Europe and the United States. During the 1950s, groups of Paris couturiers sought to dismantle networks of copyists based in French provincial cities such as Bordeaux and Marseille, and in the French colonies and protectorates. In 1952 the Chambre mandated police agents to dismantle a network of copyists of *haute couture* that had workshops and retail branches in Greece and in Syria.[34] Professional organizations, and in particular the Chambre, acknowledged the importance of the International Convention on Copyright signed in Geneva on September 6, 1952, as a step towards heightened international protection of intellectual property rights, including for *haute couture*. The French couturiers used

various elements in intellectual property rights to extend the protection of their creations abroad. For example, in countries that did not recognize copyright on fashion designs they could use the international registration of their designs as proof of anteriority, which was not required where copyright could be used.[35] In the present day, fashion firms may send lawyers and require police to search counterfeiting establishments in distant countries, but these method are far from being recent in origin.[36]

In examining the intellectual property lawsuits that took place in colonial contexts, I aim to better grasp the extension of intellectual property over fashion designs. The examples considered here come from counterfeiting lawsuits that took place in Congo during the 1950s, the last decade of Belgian rule. The first case took place in the court of Elisabethville (Tribunal de Première Instance), today Lumumbashi in the province of Katanga, in south-east Congo, a region particularly rich in mineral resources.[37] The plaintiff, firm C. et Cie, sued the defendant, firm G., for the counterfeiting of a manufactured print fabric in December 1953. The plaintiff had registered the fabric nearly a year earlier, in January 1953, at the Ministry of the Colonies in Brussels, where all patents and industrial designs to be exploited and sold in Belgian Congo had to be registered, according to a law of 1922.[38] The plaintiff demanded the exclusivity of the fabric print for a duration of three years, but soon saw that a competing company, firm G., had had a similar fabric made in Japan, imported, and sold on the Congolese market, with exclusivity in the market of Lumumbashi. On December 29, 1953, the court of first instance of Elisabethville convicted the defendant, firm G., on the grounds of unfair competition (*concurrence déloyale*).[39] The defendant then appealed the case in the Court of Appeal of Elisabethville. The judgment on appeal was passed on January 31, 1956, and upheld the previous judgment against firm G, only diminishing the damages demanded for unfair competition. The judgment gives further indications of the grounds on which intellectual property rights cases were judged in the colony. While unfair competition was cited as the main reason for the judgment, and for maintaining the same line of reasoning in the appeal, the courts' proceedings show a complex and nuanced series of arguments in which counterfeiting was also a consideration in the judgment on appeal.[40]

A question raised during the appeal of 1956 was whether unfair competition did or did not cancel the count of counterfeiting. The plaintiff, C. et Cie, had indeed qualified the infringement as unfair competition, but had also defined the infraction as an infringement of the usage of protected designs—or, in other words, counterfeiting. In the Belgian jurisprudence, a case from 1939 had decided the incompatibility between unfair competition and counterfeiting. But, in this case, the judges thought that both counts were compatible, and therefore that the firm G. could be ordered to pay damages under either the count of unfair competition or of counterfeiting. Each of these actions, added the judge, had as its base in article 258 of the Civil code, book III. Both counts were relevant in the case, added the judge, considering that the drawings of the fabric that was the source of the litigation showed that it was not just an industrial design but also retained an artistic character. The judge then added that the facts proceeded not only from the protection of industrial design but also from authors' rights, all of which were, in Belgian Congo, modeled on Belgian law and enjoyed reciprocity under the rules of the Berne Convention.[41] Therefore, according to the law, including the revised decree on authors' right of June 21, 1948, the registration of the fabric design was not even necessary to prove that there had been counterfeiting or unfair competition.

Another case that went to the Court of Appeal of Kinshasa (then called Léopoldville) on April 28, 1959, was judged along similar lines to this first case. The second case

opposed two women entrepreneurs over the counterfeiting of a series of wax fabrics, an important product for fashionable wear in this part of the African continent, as examined in detail by Anne Grosfilley in her chapter in this volume. Four designs of fabric had been counterfeited. The entrepreneur, firm N., was convicted, in this case as in the previous one, on the grounds of unfair competition, and had to pay damages for this reason. The defendant also had to immediately cease any sale of the counterfeited fabrics. In addition, in this second case, the convicted entrepreneur had to publicize the judgment by placing a notice on the doors of her retail premises and publishing two newspapers insertions at her own expense.[42]

Numerous common points appear among the counterfeiting cases judged in the courts of Belgian Congo and cases initiated by couturiers against counterfeiters. The chief accusation of unfair competition was, as discussed above, used in the United States to protect designs from copying. In Congo, the judges used the arguments of unfair competition, copyright, and industrial protection together to try cases of illegal copying of fashion designs. The cases that appear in the case law of colonial Congo were about the industry of fashionable print fabrics. Some of these fabrics were categorized as wax, but not all. The first lawsuit described above shows a case of distant production—in Japan—of counterfeits destined to middle-class and affluent central African markets. The second case, which concerned a series of four counterfeited designs, shows the judge demanding that the counterfeiter publicize her conviction. This shows continuity with the practice of the law as seen in the cases brought by the *grande couturière* Madeleine Vionnet against counterfeiters of her designs.[43]

Other cases judged in Belgian Congo show that the protection of trademarks was also exercised in the courts of the colony with similar arguments to those used in the metropole. There was apparently no notion that intellectual property rules should be adapted or considered differently in the colonial context. For the broader context of these cases, it is, however, relevant to note that the colonial authority maintained, during the same period, tribunals that were dedicated to the practice of customary law. Numerous cases treated there were on familial matters, but there was, potentially, some overlap between colonial law and customary law; however, this does not seem to have much influenced questions of intellectual property rights.

Those cases show a coherence with counterfeiting cases brought in interwar Europe, especially in France. The legal framework and the grounds for convicting counterfeiters of fashionable products were similar in these various contexts. Western colonizers had taken with them rules on authorship and applied them regardless of the background of the entrepreneur or the origin of the design, which is coherent with the doctrine that intellectual property rights address not the aesthetic of a design but its intrinsic qualities of originality. Indeed, in the second lawsuit from colonial Congo examined here, the judgment was protective of designs in wax fabric that are associated with Central African culture and are also the product of a highly internationalized culture of exchanges. The questions posed in the colonial courts of Congo were never about local origination in the design. In that sense, copyright as applied in the colonial cases examined was coherent with the ambition of universality of the Berne Convention.

But the internationalization of intellectual property law did not happen in a cultural vacuum. The Belgian colonial authority in Congo attempted to organize courts along two lines, as briefly intimated above: One was Belgian law applied by the Belgians in the colony, from which proceeded the cases briefly examined above. The other was customary law (*droit coutumier*), which had its own courts. Cases tried under customary

law and transcribed in the Belgian sources could approach, for example, roles in craftsmanship. But this legal framework did not seem to be effective, as far as the sources I have examined suggest, in preserving the craftmanship heritage of the Congo population. Woven fabrics were retailed without a proper acknowledgment of their origins, such as Kasai velvet, a prized, delicate, handwoven fabric that could be found in European art galleries copyrighted under the name of the Belgian or French retailer. These fabrics were bought in Congo and went through various intermediaries on their way to Europe, so that the traces of the artisans who created them were lost.[44] Already during the interwar period, members of the commission in charge of the preservation of colonial heritage in Belgium were concerned by the consequences of trafficking of the arts of the colonized people.

This brief examination of the exports of intellectual property outside Europe show important blind spots in the law, such as in the realm of local arts and crafts in colonial contexts.[45] It also shows that fewer and fewer places on the world's map were out of reach of the originators of intellectual property when they decided to sue copyists. Today, police raids aim to dismantle the workshops and stocks of counterfeiters around the world, despite the persistent disparities globally in the status of copying in the realm of fashion. For example, the United States joined the Berne Convention for the Protection of Copyright only in 1989, and to this day U.S. copyright law does not include fashion design.

## When Designers Question Intellectual Property

The previous paragraphs have shown the race to protect original fashion designs in the courts. But experts disagree as to the negative effects of the production of imitations and fakes. Some believe that the commerce in fakes may also help in educating the taste of consumers, who may start by buying a fake but, later on, may buy the real product.[46] Seen from that vantage point, fakes are part of a system that creates aspiration for fashion. An entrepreneur who took advantage of that was Gabrielle Chanel. An example of a rags-to-riches story who is often invoked to discuss women's empowerment, Chanel had a very complex approach to intellectual property.[47] Research in the archives of the French courts shows that, during the interwar period, she banded together with Madeleine Vionnet to sue copyists.[48] Yet she was also a pioneer in licensing her brand, which became an iconic enterprise with her Chanel N°5 perfume, launched on May 5, 1921. Chanel capitalized very early on her brand, launching a fine jewelry line during the Great Depression, but also opening, next to her *haute couture* establishment, a Chanel fabrics shop to sell her distinctive tweeds, prints, and trimmings to the women who wanted to reproduce Chanel garments at home, which was allowed by the Chambre Syndicale de la Couture Parisienne.[49] Authenticity and reproduction were, in the case of Chanel, two faces of the same coin, that together enhanced the unparalleled reach of the brand.

This examination of the ways in which intellectual property was approached in the colonial realm shows the ways in which the West imposed its own systems of protection overseas, in competitive markets such as in the United States but also in its colonial empires. Colonized populations found ways to exercise their creativity in the use of intellectual property systems set up by political and legal regimes that were imposed on them from the outside, and by force.

Yet such systems, to this day, generate numerous challenges. One is the co-optation of the brand that can be reinterpreted in the way brands are worn. Another pathway goes further in subverting the brand, not just when wearing it but also by reinterpreting it,

modifying it, or engaging directly with the question of counterfeits. A third question is taken up in the important debates on cultural appropriation, in which designers of garments infused with folklore, for example, may feel spoliated when they see their designs re-used by brands who do not credit their origin. The counterargument in this debate is that all should be free to use inspirations across cultures. Despite the effort of preservation of folklore by institutions such as the UNESCO, much remains to be done to understand such questions and appease such debates.[50]

The business model that stabilized during the postwar era was based on brand licenses. *Haute couture* firms kept a small production of higher-end designs in ateliers situated at their headquarters and presided over the licensed production of branded goods that followed sets of regulations set by the firm. The arrangements between licensor and licensee were organized following contract law. On some international markets, such as in the pioneering case of Japan, licenses became an important part of the economy of fashion.[51] The relations between the luxury firm and the licensing firms can encompass more or less control and demands over design identity and quality of the production, to cite a couple of criteria.

During the 1970s and 1980s, a large number of *haute couture* firms were integrated into larger entities, the luxury groups, which brought the advantage of a greater financial stability. Newer business models emerged, that can be analyzed as a reaction to an excess of branding and licenses. Numerous fashion designers had come to prominence in the era of licensing. Some of these brands, such as the Belgian designers Ann Demeulemeester, Dries Van Noten, and Martin Margiela (the last discussed below), chose to retain a more confidential image and to limit their lines of branded goods.

During this era, branding became synonymous with affluence and display. Brands were not just a way to show wealth, aspirations, taste preferences, and ambitions. They also started weighing in the portfolios of firms' assets, in the fashion industry as well as in other domains, such as accessories, beauty, sports goods, and hospitality. Against this backdrop, some emerging designers used their own creativity to question the business models of luxury. One important wave among this generation of designers was the Japanese deconstructionists. Another group was the Belgian designers often termed the Antwerp Six, to which is usually added a seventh designer, Martin Margiela. In 1988, Margiela built his brand on the concept of making the brand disappear. Margiela showed his first collection for the year 1989 with blank white tags sewn into the back of the clothes. Yet, on the outer back of the clothes, four white diagonal stitches affixing the label inside the garment were visible, making the invisible brand a rallying sign for the informed consumer.[52] In later bridge line or less luxurious collections, a plain flat white stitched line appeared at the back, holding the label. The idea was to put the accent back on the clothes, but also to use fashion in a critical and ironical manner. The critique addressed to branding systems was radical. Margiela developed his entire communication around absence. There were no large billboard campaigns, no magazine spreads, and few or no colors on the clothes. Margiela himself refused to be photographed and rapidly became known as the faceless designer. In so doing, he was one of a kind in an era of adulation of the designer. His refusal soon became a pathway to critical recognition. In 2008, the newspaper *The Independent* titled an article about Margiela "Forget Banksy."[53] Then in his twenties, he had already become the global superstar of anonymity. He was a branding genius, with a brand that had become extraordinarily famous.

The strategy adopted by Margiela worked for several reasons. One was that he himself was a talented designer with a coherent esthetic. In other words, the clothes that

he signed with his non-brand were desirable and often of great intelligence. Another reason was that Margiela was himself a member of schools with distinct esthetics, in which his work fitted very well. These were the Japanese school of deconstructionists designers that included Yohji Yamamoto and Rei Kawakubo, the latter also known for her brand Comme des Garçons, and the Antwerp designers, among them the group best known as the Antwerp Six, all emerging from the Fine Arts Academy of Antwerp. Margiela was, therefore, part of wider esthetics that were, to some extent, minimalistic, but also developed a deep reflection on the nature of clothing.

His work followed after the great Japanese deconstructionist designers mentioned, but with new visions. For example, Margiela used the toile cover of the Stockman mannequins—another Belgian firm—to make garments. He also made garments entirely with older clothes, such as a top entirely made in a patchwork of old gloves stitched together. This was not just a fun piece of clothing, but conveyed in the spectator mixed feelings of repulsion—there were hands all over this top, and old gloves may convey an impression of a lack of hygiene—and at the same time coolness and uniqueness. Thought-provoking exercises about the body, the status of fashion, the place of art, and the heaviness of consumer society were repeated in collection after collection. The esthetic was further pursued in merchandizing in his first boutique in the rue de Flandre in Brussels, where everything was white—the floor, the doors, the façade, the entire interior, the telephones—which gave the shop a radical look that, according to Margiela's assistants, had developed quite organically when working on the spot, when the team realized how effective it was to paint everything white.

In 2006, Italy-based group Only the Brave (OTB) acquired full control over the house of Margiela. Since then, the group has kept growing with the development and acquisition of further designer brands. The group pursues an active intellectual property rights strategy: For example, it filed the trademark MM6, for a bridge branded line, in 2012.[54] Maison Martin Margiela has also developed protective terms for markets where intellectual property rights might be challenged, such as the United States.[55] OTB won an intellectual property award in 2015.[56]

Numerous designers have engaged with the symbolic and financial value of the brand. I briefly evoke several cases here, among numerous others: The Harlem tailor Dapper Dan and his relation to luxury brands; the controversy opposing the late Virgil Abloh to Walter Van Beirendonck; and the co-opting of the IKEA bag by the brand Balenciaga, then designed by Demna Gvasalia. I only briefly discuss these examples, to underline that such cases deserve further study.

The first of these examples is Dapper Dan, a Harlem tailor who owned a shop branded as "Gucci Made in Harlem" and in 2019 published his autobiography, where he details, among other points, his relation to brands and creativity. Dan was an extremely skilled tailor who used brands as a citation and homage, but who also received scrutiny from the same brands for that. In an industry where there are few ways to cite, engaging with design critiques of the brand can be challenging.[57] Yet Dan's at times contested engagement with globalized brands developed in collaborations. These have become very popular over the last couple of decades, and the economic benefits resulting from such cross-fertilization also tend to alleviate potential controversies over copying.

As intimated above, a challenging question for the fashion craft is the issue of citation in a system of creativity where a proper citation system barely exists, or, in other words, where citation may often be interpreted as ambiguous or based on good faith. Virgil Abloh, a designer who developed a brilliant career under his brand Off-White, was also a

designer under the umbrella of Vuitton for the luxury group LVMH before his premature death in 2021. Like Dan before him, Abloh pushed the limits of creativity and questioned potentialities for using modes of citation in fashion design. Abloh was known to question the limits of the citation of branding and forms with his work. But this could be perceived as infringement, rather than as a new form of creativity, which is what happened when a conflict of attribution arose in the case of the design of a men's coat and matching rag doll in tone-on-tone wool. Walter Van Beirendonck, a designer historically a member of the Antwerp Six Group, alerted the media to the similarities between Abloh's design for Vuitton and some of his own works from a few years earlier. Although the colors were not identical, the design concept, cut, shape, material, destination, and meaning were indeed very close. An article on the topic published in the *New York Times* attracted comments that debated the questions of copying and the just way to cite colleague designers. It remains uncertain whether Abloh or his assistants had absorbed the visual grammar of an admired predecessor or whether the similarity was intentional.[58]

The citation of a brand does not always involve the co-option of a luxury brand by a lesser-known and less-affluent one. This idea was subverted in several cases, such as the design citations of the so-called *refugee* red-white-and-blue bag by various high-end designers.[59] Another case was the copying by Paris *haute couture* firm Balenciaga of the mass-produced, robust, and inexpensive blue plastic transport bag from IKEA. The IKEA bag is indeed iconic, and retails for under a dollar or pound. Balenciaga made replicas of this bag in the same color, but in real leather, and retailed them for more than $2,000, which sent ripples of indignation throughout the media. IKEA replied with its own advertising campaign celebrating the iconic status of its bag.[60] This rested upon the robustness of IKEA's finances; the company did not need to claim a share of the profits made by Balenciaga. The episode had turned the direction of copying on its head.[61]

## Conclusion

Profound divergences remain in the use of intellectual property by fashion firms and designers that are not just a matter of national preference. While it is true that France enjoys a legal system that allows for a strong protection of fashion innovation, not all industrialists in France agree with the need for protection. The United States enjoys a less protective legal system, which is related to its history as a nation specializing in ready-to-wear manufacturing.[62] Such an interpretation suggests that national governing actors have in mind their innovative industries when reinforcing their intellectual property laws in some fields of activity to the exclusion of others.

Fashion producers may experience challenges that are related to their access to legal services. During the interwar period, *haute couture* firms joined forces in order to be able to afford lawyers and legal counsels to help them with protection on domestic and international markets. Today, instances of small designers being spoliated of their creations by large companies are recurrent, and demonstrate that the balance of power in accessing legal services is strongly tipped in favor of the large firms. The emergence of websites that denounce copycats, as analyzed by Paula von Wachenfeldt in her chapter in this volume, may be viewed as a form of rebellion on the part of smaller players, who use social media platforms to name and shame larger competitors considered to be copyists and benefiting from unfair advantages. Important designers have also committed to cite, transform, and reinterpret brands that are protected but that have become during the last century emblematic of popular culture, such as Dapper Dan was doing with Gucci, for example.

Today, branding and trademark law seem to have become dominant in intellectual property rights portfolios in the fashion industry. Patent may, however, gain renewed importance as new fabrics, such as intelligent textiles, and new machines, such as sewing or measuring robots, develop and are commercialized.

In a field where citation is often ambiguous and subject to interpretation, we have seen that the use of visual citations in fashion design tends to provoke discourses on copying in the media, and may trigger actions in the courts. Intellectual property presents fashion creativity with several challenges. One, that has appeared in the cases discussed above, is the difficulty in situating the border between originality and copying in an industry that is inherently derivative. This argument was opposed by the United States legislator to the French system of copyright law, which included fashion among the industries that enjoyed copyright protection. Indeed, it remains challenging to guarantee originality in the making of garments that have all two sleeves, a body, and a skirt or two legs. The derivative character of fashion was the main reason for legislators' refusals to protect copyright in fashion designs and textiles, in, for example, the United States.[63] We have seen that early problems arose from the dissemination of patented innovations and from the reproduction of novelty designs. Such challenges have endured.

The times and places of intellectual property matter to the fashion industry. In any eventuality, protection of fashion designs is always for a limited time. The first patent pool in history lasted for 20 years, a period during which the economists Lampe and Moser have shown that innovation in this domain slowed down. The fabrics designs registered in Belgium for their commercial exploitation in Congo were protected for a duration of three years. A recurrent discussion in the field of fashion law is that the usual duration of copyright—in France, 70 years after the death of the author—is too long to be relevant for fashion. But in the case of classic luxury items such as Chanel jackets or handbags or Hermès handbags or scarves, the length of the protection may sustain the prosperity of the firms. This takes place in a broader context, in which fashion cycles have become so fast that they hardly matter, giving newer fashionable interest to more static or classic luxury objects.

The fashion industries are among the most globalized. As far as intellectual property rights are concerned, globalization creates specific difficulties. Intellectual property rights were strongly influenced by the francophone views on high authorship. The French fashion entrepreneurs were at the forefront of lobbying for high authorship in their industry. They partially succeeded, with the already-mentioned exception of the United States. Yet this chapter has shown that European countries and, as the cases studied for this chapter make clear, the francophone countries especially, readily transferred their intellectual property rights to their colonies. Such systems protected the most internationalized productions, but were often inadequate to prevent looting and appropriation of the arts and crafts made by colonized people. International organizations such as UNESCO alleviated some, but not all, of these challenges.[64] Today, these questions regularly come to the fore in cases broadly defined as relating to cultural appropriation. In the face of this, creators have also engaged in critiques of intellectual property, generating, in turn, some of the most compelling fashion productions of the last decades.

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